

DATA GOVERNANCE & REGULATORY COMPLIANCE FRAMEWORK

A CASE STUDY ON IT MISUSE VS. INFORMATION ACCESS
UNDER SAUDI ANTI-CYBER CRIME LAW

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Freedom of Expression vs. Information Technology Misuse

Introduction

All angles on the platform. Generally speaking, this is an effective method for ensuring that everyone has access to the freedom of expression and knowledge. This viewpoint, however, is only valid when considering social media usage that is constructive. In social media, everyone has the right to free speech, allowing both positive and bad viewpoints to be heard.

The right to free speech can be used both for and against society. Users who express themselves online, whether they are identifiable or not, are exercising their right to freedom of expression. It would still be seen as an act of free expression for both users to post critical comments online. Readers are influenced positively by positive reviews.

Relevance in the IT Industry

Due to the rapid emergence and evolution of new technology, the authorities and ruling parties can be very scared of the potential impact of new platforms on their operations. This is why the First Amendment of the Constitution must be not only protected, but also enforced. Students have the right to express themselves and to disseminate ideas through various media. In this case, three Iowa students were suspended from school for wearing armbands to protest against the Vietnam War.

Case Study

Public school students have First Amendment free speech rights at school | *Tinker v. Des Moines Independent Community School District* (1969)

As for concerns about the suspension of three Iowa students—John Tinker, Mary Beth Tinker, and Christopher Eckhardt—from school for wearing black armbands to protest the Vietnam War, they appealed their punishment to the Supreme Court and won. The court declared they should have been allowed to wear the armbands.

The court ruled that schools are only allowed to limit students' expressions if they are sure that it will cause them to disturb or harm other students' rights or religious beliefs. They also cannot punish students merely because they do not like what they are wearing or are not in agreement with what the students are saying.

Description of the Local Intake of the Topic

Regional View - Saudi Arabia

- Examine Saudi Arabia's approach to the selected subject.
- Examine its efforts to protect its citizens from the misuse of technology and to encourage moral behavior in relation to our selected issue.

Local Viewpoint

One of the fundamental human rights is the right to free speech, which is supported by all international and regional accords worldwide. Despite this, several constraints and limitations affect the freedom of expression, making it not an absolute freedom.

Article 19 of the Universal Declaration of Human Rights affirms that the exercise of these rights shall be considered "special duties and responsibilities" and that "they may therefore be subject to certain restrictions" when necessary "to respect the rights or reputations of others" or "to protect national security, public order, public health, or public morals." Article No. 19 of the Declaration of Human Rights recognizes the right to freedom of expression as a fundamental human right.

Like other nations, the Kingdom strives to protect the right to freedom of expression, but with limitations to ensure that it is consistent with our tolerant Sharia, Islamic faith, and national interests. As a result, the Kingdom has progressed measures to set up the local context for the practice of limited freedom of expression. Among the most well-known organizations founded by the Kingdom for this purpose are the King Abdulaziz Center for National Dialogue and the Shura Council, both of which provide the freedom of speech within their roofs.

The domains being deliberated upon encompass not only the counseling and support centers connected to the Ministry of Interior, but also other establishments that manage press, media, and social media organizations, and scrutinize, assess, and rectify the data acquired to guarantee its protection against deliberate disinformation. The Kingdom forbids indiscriminate speech that influences public opinion, incites opposition to official institutions, or violates the Anti-Cybercrime Law.

Willful or careless unauthorized conduct that compromises the confidentiality, availability, or integrity of information technology (IT) resources is referred to as "IT abuse". The Saudi Anti-Cyber Crime Law seeks to safeguard the privacy of individuals, the public interest, morals, and users' rights when it comes to computers and the internet.

Only the cybercrimes that can be performed through the use of social media will be covered in this article, along with the punishments for each offense in line with the Saudi Anti-Cybercrime Law.

Cybercrimes can happen as stand-alone crimes (like sending unlawful content) or they can be connected to other crimes (like sending content that shows drug use or procession). Social media use can be used to perpetrate a variety of cybercrimes, each of which carries a punishment. Cybercrimes in Saudi Arabia include gaining unauthorized access to a computer to threaten or blackmail a natural or legal person into doing something or refraining from doing something else.

Many have been subjected to threats or blackmail via WhatsApp or Twitter after the culprit gained unauthorized access to the victim's computer, according to reports.

Defamation via social media of a living or deceased person:

A lot of people share their thoughts, feelings, and observations about news or events. We occasionally have to decide whether or not to agree with someone else's viewpoint. Someone who disagrees with us could come up and insult or disparage us. Social media defamation is illegal in Saudi Arabia and is punishable by the Anti-Cyber Crime Law.

Conclusion

One of the fundamental human rights is the right to free speech, which is supported by all international and regional accords worldwide. Despite this, several constraints and limitations affect the freedom of expression, making it not an absolute freedom.

Article No. (19) of the Universal Declaration of Human Rights, which declares that "Every human being has the right to freedom of expression," recognizes the right to freedom of speech as a fundamental human right. Like other nations, the Kingdom strives to protect the right to freedom of expression, but with limitations to ensure that it is consistent with our tolerant Sharia, Islamic faith, and national interests.

Willful or careless unauthorized conduct that compromises the confidentiality, availability, or integrity of information technology (IT) resources is referred to as "IT abuse". The King Abdulaziz Center for National Dialogue and the Shura Council, two organizations that uphold the freedom of speech under their roofs. The domains being deliberated upon encompass not only the counseling and support centers connected to the Ministry of Interior, but also other establishments that manage press, media, and social media organizations, and scrutinize, assess, and rectify the data acquired to guarantee its protection against deliberate disinformation. The Anti-Cybercrime Law states.

The Saudi Anti-Cyber Crime Law seeks to safeguard the privacy of individuals, the public interest, morals, and users' rights when it comes to computers and the internet. Cybercrimes can happen as stand-alone crimes (like sending unlawful content) or they can be connected to other crimes (like sending content that shows drug use or procession). Social media use can be used to perpetrate a variety of cybercrimes, each of which carries a punishment, obtaining illegal access to a computer to intimidate or threaten a natural or legal person and make them do something or refrain from doing something.

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Discussion Questions

- When is the expression of opinion considered incitement and an act of hatred?
- What are the limits that must be applied when the opinion is expressed from your point of view?
- Do you think that there is a lot of awareness about the missing of social media?
- Name one of the forms of damage caused by hate accounts in social media?
- Name some topics that you think the freedom to express opinion is little or almost non-existent when they it's become the subject?
- How to protect yourself from the abusive acts that happen under the name 'freedom of expression'?
- When is the expression of opinion considered bullying on social media?

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